

In The United States District Court
For the Northern District of Mississippi

Matthew O. Reardon
Plaintiff

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FEB 13 2023

United States District Court
Northern District of Mississippi

Cause 3:22-cv-00050-SA-JMV

Vs
State of Mississippi et al
Defendants

Memorandum In Support For Request For Emergency
Injunctive Relief and Stipulated Order for Protection

This Complaint was Initially Filed in April of 2022 and was later amended alleging Deprivation of Civil Rights, Conspiracy to interfere with Civil Rights, and a Multitude of Intentional Torts Committed by the Named Defendants as a result of Damages and Injury caused by two improper and unwarranted Civil Commitments which occurred in December 2021 and February 2022. Plaintiff Alleged and Alleges that the First Civil Commitment stemmed from Interference and Deterrance of a Constitutionally Protected Civil Duty as a Journalist and Interested Party to a Separate legal Matter, and the Second Civil Commitment came about as a result of Retaliation from the Filing of a Formal Grievance in regards to the First Civil Commitment. On or around June 7, 2022 this honorable Court Advanced this Lawsuit Forward, Ordering that the US Marshalls Office serve process of the Complaint to all named Defendants. Just three weeks later, on June 28th 2022, Plaintiff was abruptly taken into custody by the Lafayette County Sheriffs Department and charged with Aggravated Stalking by Lafayette County and the State of Mississippi; All of whom are Defendants in this Lawsuit. This charge stemmed solely from Plaintiff

Engaging in a Constitutionally Protected Activity as a Citizen Journalist ~~and~~ Conducting a First Amendment Audit of the Oxford, MS City Hall with the Intent of Requesting Public Records at the Conclusion. The Basis of this Felony Charge as read in the Bill of Information by the Charging Officer was a restraining order taken in May of 2017 by the then Mayor-Elect Robyn Tannehill, prior to being elected, which allegedly was Violated as a result of my presence at Oxford, MS City Hall on June 24th 2022. It also listed 5-6 Twitter Tweets during the month of May, 2021, over one year prior during the re-election campaign of Mayor Robyn Tannehill, which criticized her Political Policy. In essence, the decision and Actions of the State of Mississippi, it's Agents and Officers, and Lafayette County have created a Full-Fledged Constitutional Crisis on multiple Accords that pose an Urgent Need to be Addressed by this honorable Court.

The First Issue is the legality and Validity of the restraining Order taken out May 22nd 2017 by Mayor Robyn Tannehill and her Husband Rhea while she was running for Mayor of Oxford, MS. I had never had any contact whatsoever with Mayor Tannehill and had never seen her outside of a Board of Aldermen meeting on May 16, 2017 where I voiced a grievance regarding a controversial decision made by the then current Mayor Pat Patterson and Board of Aldermen Members, of those included Robyn Tannehill whom authored the referendum. The reasons for seeking the restraining order are listed on the Affidavit of Robyn Tannehill and are all but Astonishing. On it, it lists out Constitutionally Protected and Democracy supportive activities such as I "Mounted an aggressive Online Campaign against Me (her) and I" came to the City Hall Board meeting with a gun on my hip, and pointed at her with a gun on my hip". She also references that I "called her "Corrupt". Is this something that our Society, and our Democracy can tolerate and Condore? The Condemning of a Journalist and Constitutional Rights Activist for

his engaging in Local Politics and using his First Amendment
 Right ~~and~~ Marketing skills to run an aggressive online campaign
 against a Mayoral Candidate with adverse views; even
 calling her Corrupt, which was seldomly mentioned.
 The complete ignoring and lack of respect for the
 Second Amendment when a concerned Citizen Journalist
 and Constitutional Rights Activist lawfully carries a
 holstered Firearm and pointed at each City Board
 Member and the Mayor in attempting to redress
 a rather big grievance. Conveniently, what is not
 listed but was known at the time this Affidavit
 by Tannehill was the fact that my name was officially
 added to the Docket of the June 6, 2017 Oxford
 Board of Aldermen meeting which just so happened
 to be the same day Tannehill would be elected as
 Oxford, Ms's 36th Mayor. This restraining order
 would effectively keep me away from the June 6th
 Meeting, where I was scheduled to speak against
 one of Mayor Tannehill's primary Policies. A
 permanent order was agreed to under inducement
~~and~~ duress later in June, 2017, however
 that order had never been renewed for the
 first time in the years following and leading up
 to June of 2022. In assessing the legality
 and validity of the restraining order, this Court
 should weigh and consider whether the Claims made
 on Tannehill's Affidavit are Constitutionally sound
 or would lead to a deprivation of Plaintiff's
 Federally Protected and established Constitutional Rights.
 Then it should assess if a restraining order taken
 out on a Journalist, or any Citizen for that matter,
~~by~~ a public official can truly be permanent
 stretching into two terms of office without
 any type of Renewal. Finally, this Court should
 assess whether a restraining order on a

Constituent or Journalist Placed by Public Official can prohibit access to a public Building, such as City Hall to File Grievances and request Public Records, if that Public official's office is inside of such public Building when weighing in all Five Guaranteed Protections under the First Amendment.

The second large issue for this honorable Court to take into Consideration is if 5-6 Twitter Tweets posted one year prior during a re-election campaign of a Public Official which criticized their Policies can be Criminalized or if they are afforded the guarantees and protections under the First Amendment's Freedom of Speech and Freedom of Press clauses. If the Criminalization of such as a "Course of Conduct" is declared Unconstitutional ~~and~~ in violation of the First Amendment, then the Criminal Charge of Aggravated Stalking must be declared Unconstitutional. Particularly if a citizen and Journalist cannot be barred from entering City Hall and conducting Business based on a 5-Year old Restraining order that was taken out by a publicly Elected Official.

Plaintiff sat deprived of his liberty and other resources for approximately 92 days at the Lafayette County Detention Center after the Assistant District Attorney filed a motion to deny bond and hold to trial was granted. Only after Plaintiff's wife was terminated from her job due to having to attend to the special needs of her ailing child without the help of her husband and after the threat of even longer extended Incarceration was the Plaintiff threatened and Coerced to Plea out. Plaintiff was given 5-years Unsupervised, Non-Reporting Probation, Banishment from Lafayette County to begin

With Plaintiff having to Move out of his residence 45-Days later, and accessing Court Fines. ~~and~~ The Public Defender knew of the ongoing Family Crisis at home and used this to extract a plea with the promise that he would expunge the charge as soon as it became eligible. Immediately after plea is taken, Plaintiff stated to counsel his absolute wish to withdraw his plea and take the matter to trial due to the nature of the charge which was alleged and the effects that a banishment from Lafayette County would have on current legal matters including this Lawsuit, as well as the immense stress associated with having to relocate family within 45-Days. Counsel refused to assist with any attempt to withdraw Guilty Plea, so Plaintiff filed his own detailed Motion to withdraw Guilty Plea on October 31, 2022, the 30th business day after plea was given. The very next day, November 1, 2022 the Assistant District Attorney filed a motion to revoke Plaintiff's Sentence and hold Plaintiff in custody until the Revocation hearing and an order is immediately signed by a separate Circuit Court Judge. Plaintiff was denied due process on the revocation proceeding by never being informed prior to the scheduled hearing just two days later as to what the reasons for revocation ~~were~~^{were}, no attorney to represent Plaintiff was present, and Plaintiff was not allowed to present exonerating evidence of his Innocence. The primary reason for revocation of sentence involved a claim that Plaintiff commuted into the city limits of Oxford, MS to the FBI Field office without a scheduled appointment to meet with FBI Agents which was testified to by a Lafayette County Sheriff's Deputy. However, Plaintiff possesses evidence through Call Recordings that he was in fact requested

by an employee or agent of the FBI to Commute to the local Field office in Oxford, MS from his residence out in Lafayette County to deliver evidence of alleged Law Enforcement Corruption captured on video in another city. Plaintiff then communicated this official request to the Lafayette County Sheriff's Department and once again recorded this phone call so as to be in full compliance of the Circuit Court Banishment order, even though Plaintiff had 17 more days to move out of Lafayette County and his residence. According to testimony from the Sheriff's Deputy at the revocation hearing, Sheriff Joey East called the local FBI Field Office and asked if Plaintiff had an appointment to come up there and he was advised that the Plaintiff did not, however contradicting evidence exists to the contrary. The date and time of the call to the FBI Field Office was ~~on or around~~ ^{on or around} October 28, 2022 at 10:00 AM approximately. Another employee of Lafayette County Sheriff's Department testified at the revocation hearing that she saw the Plaintiff taking his children Trick-or-Treating on Halloween, October 31st 2022 at a neighborhood on the outskirts of Lafayette County, yet she could produce no evidence via audio, video, or pictures to substantiate her claim, nor could she provide a car tag number despite her allegedly seeing Plaintiff at his vehicle with his kids. The Circuit Court ^{Judge} retired to his chambers very briefly to deliberate with the Assistant District Attorney walking through the doors to a separate adjacent and connecting corridor to the Judges Chambers. Approximately two minutes later the Judge emerges with the ADA emerging at the same time. The Judge announces that the evidence is sufficient to revoke my sentence and sentences ~~the~~ ^{Plaintiff} to a 1-Year to serve in prison at the recommendation of the ADA despite Plaintiff's

Insistence of his Innocence in the Matter. Plaintiff alleges that evidence will prove entrapment by following the direction of Law Enforcement to report a serious Matter, Plaintiff also alleges he is being Falsely Imprisoned through Malicious Prosecution stemming from massive Constitutional Rights Violations in order to intentionally interfere with the Lawsuit filed in this Court and deprive the Plaintiff of his Federally Protected Civil Rights.

As such, Plaintiff is submitting requests for Federal Subpoena's to be issued to the FBI in Oxford, MS requesting the call recordings on their end of the call placed to the field office by the Plaintiff 10/28/22 around 10AM from his cell phone number. Plaintiff also requests the call recording from Lafayette County Sheriff Joey East to the FBI Field Office a short time later. Finally, Plaintiff will request a subpoena to be sent to the Lafayette County Sheriff's Department demanding every recorded phone call made from the Plaintiff from the dates of June 28th 2022 until September 30th 2022.

42 U.S.C.A 1985 sums all that has occurred as Conspiracy to Interfere with Civil Rights. In it, it defines the following:

(2) Obstructing Justice, intimidating Party, Witness, or Juror
 "If two or more persons in any state or territory conspire to deter, by force, intimidation, or threat, any ~~person~~ party or witness in any court of the United States from attending such court, or from testifying to any matter pending therein, freely, fully, and truthfully, or to injure such party or witness in his person or property on account of his having so attended or testified, or to influence the verdict, presentment, or indictment of any grand or petit juror in any such court, or to injure such juror in his person or property on account of any

Such Verdict, Presentment, or indictment lawfully assented to by him, or of his being or having been such Juror; or if two or more persons conspire for the purpose of impeding, hindering, obstructing, or defeating, in any manner, the due course of Justice in any State or Territory, with intent to deny to any citizen the equal protection of the laws, or to injure him or his property for lawfully enforcing, or attempting to enforce, the right of any person, or class of persons to the equal protection of the laws;"

(3) Depriving Persons of Rights or Privileges

"If two or more persons in any State or Territory conspire ~~to~~ go in disguise on the highway or on the premises of another, for the purpose of depriving, either directly or indirectly, any person or class of persons of the equal protection of the laws, or of equal privileges ~~and~~ immunities under the laws; or for the purpose of preventing or hindering the constituted authorities of any State or Territory from giving or securing to all persons within such State or Territory the equal protection of the laws; or if two or more persons conspire to prevent by force, intimidation, or threat, any citizen who is lawfully entitled to vote from giving his support or advocacy in a legal manner toward or in favor of the election of any lawfully qualified person as an elector for President or Vice-President, or as a Member of Congress of the United States; or to injure any citizen in person or property on account of such support or advocacy; in any case of conspiracy set forth in this section, if one or more persons engaged therein do, or cause to be done, any act in furtherance of the object of such conspiracy, whereby another is injured in his person or property, or deprived of having and exercising ~~any~~ right or privilege of a citizen of the United States, the party so injured or deprived may have an action for the recovery of damages occasioned by such injury or deprivation, against any one or more of the conspirators."

Plaintiff expresses to this honorable Court that he has been hindered in Communicating out to this Court to update his Mailing address while Incarcerated which has led to an inability to receive any Filed Documents and effectively Prosecute this Lawsuit. For this reason and for the complicated, serious issues raised in this memorandum, Plaintiff would request that this Court appoint legal counsel that can advise him and help properly develop the issues which have obstructed this matter and inflicted Irreparable Injury upon the Plaintiff.

Plaintiff Requests that this Court send the Amended Complaint and all Filed Documents in this Matter to the Following Address;

Matthew Reardon MDoc#210988
CMCF - QB C Bldg D Zone Bed 131
Po Box 88550
Pearl, MS 39208-8550

Please Note that I could be transferred to a different facility Any Week!

Supporting evidence and documentation can be viewed in the News Section of www.LafayetteMS.net with the referenced Tweets and Full Audit of City Hall at www.lafayettams.net/constitutional-crisis

Wherefore All Premises Considered

Plaintiff requests this Court to grant Emergency Injunctive relief with Plaintiff's desire to have a stipulated order for Protection against all parties of this Lawsuit. Plaintiff requests that a hearing on the matter be scheduled as soon as possible. Plaintiff requests appointment of legal counsel to assist due to the complicated issues. Finally Plaintiff requests all Filed documents in this cause beginning with the Amended Complaint

Submitted this 7th day of February 2023


Matthew Reardon
Plaintiff

Matthew Rearden MDoc# 210988

C-MCF

Box 88550

Dearl, MS 39208-8550

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Northern District of Mississippi

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Northern District of MS
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Amory, MS 38821

EX-10

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